



**IN THE COURT OF THE XXVII ADDL.CITY CIVIL
AND SESSIONS JUDGE : AT BANGALORE [CCH-09]**

:PRESENT:

**SMT. SUMANGALA CHAKALABBI, B.A.,LL.B.(Hons.), LL.M.
XLI Addl. City Civil and Sessions Judge,
C/C XXVII Addl. City Civil and Sessions Judge,
Bengaluru**

Dated this the 17th day of March 2026

EX. NO. 03/2025

Decree holder	Mr. Joseph Sundar Augustine Reddy Also known as J.S. Augustine Reddy S/o J. Anthony Swamy, Aged about 71 years, Rep. by its PA holder Thyagaraj Joseph @ T. Joseph S/o late Thomasappa, Aged about 74 years, R/at No.4/5, 4th Cross, Hutchins Road, Thomas Town Post, Bengaluru-560084. (By Sri Janardhana G., Advocate)
V/s.	
Judgment debtor	1. Smt. Arogyamma Since dead LRS 1(a) Sri. Fathima S/o Arokyamma @ Arokyamary Aged about 80 years,

	1(b) Sri. Kantharaj S/o Arokyamma @ Arokyamary Aged about 76 years, 1(c) Sri. James S/o Arokyamma @ Arokyamary Aged about 74 years, 1(d) Sri. David S/o Arokyamma @ Arokyamary Aged about 71 years, 1(e) Mrs. Rose Mary S/o Arokyamma @ Arokyamary Aged about 68 years, 1(f) Mr. Bethlom S/o Arokyamma @ Arokyamary Aged about 66 years, 1(g) Smt. Rose Mary D/o Arokyamma @ Arokyamary Aged about 63 years Sl.No.1(a) to 1(g) are residing at No.1, Opp. Bregadier Father Frank Road, 9th Main Road, Marianapalya, H.A. Form Poat, Hebbal, Kempapura, Bangalore-560 026. 2. Smt. J. Chowramma Since dead by LR. 2(a) Smt. Baby W/o Sri Thyagaraju Aged about 63 years,
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	R/at No.11, K.M. Road, Richards Town, Bengaluru-560 005 2(b) Sri. Gerald S/o late Jaya Sundar Aged about 60 years, R/at No.33, M.M. Road, Frazer Town, Bengaluru-560 005 2(c) Sri Francis Aged about 58 years, S/o late Jaya Sundar, R/at No.33, M.M. Road, Frazer Town, Bengaluru-560 0bs 2(d) Sri. Joseph @ Jeo S/o late Jaya Sundar, Aged about 56 years, R/at 11th Cross, Huchins Road, St. Thomas Town Post, Bangalore. 3. Smt. Annamma Krupa, W/o Sri. Kabilan, Aged 40 years, 4. Smt. A. Sreelatha W/o Sri. Gabrial Santhosh Aged about 38 years, Sl.No.12 and 13 are Residing at No.9/14, Lloyds Road, Cooke Town Bangalore-560 005. (By Sri V.A., Advocate)
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ORDERS ON MAINTAINABILITY
AND
OFFICE NOTE

The present Execution Petition is filed to execute the judgment and decree in O.S.No. 1354/1984 dated 08.11.2000.

2. The brief facts leading to the above Execution Petition are as under:

Mr. J. Anthony Swamy, while he was alive had filed O.S.No. 1354/1984 against the decree holder herein seeking cancellation of the sale deed dated 14.12.1966 standing on his name in respect of the petition schedule property and for the relief of permanent injunction to restrain the decree holder from interfering with the possession. Initially an exparte decree was passed on 11.08.1987 but subsequently, the decree holder filed Misc.Petition No.782/1987 to set aside the same. The said Misc. Petition was allowed on 22.08.2000. In the meanwhile Mr. J. Anthony Swamy died on 01.10.1997 and in his place his sisters J. Arokyamma and J. Chowramma, the

judgment debtor Nos.1 and 2 were brought on record as LR's. of Mr. J. Anthony Swamy. In the meanwhile, the suit came to be compromised between the LR's of the original plaintiff and the decree holder herein on 08.11.2000 by accepting the terms of the Compromise Petition, under which the LR's. of the original plaintiff had admitted the ownership of the decree holder herein in relation to the immovable property bearing Old flat No. 13 New Municipal No. 9/14 situated in Llyods Road, Cooke Town Municipal Corporation Division No. 86, Bangalore 560005 consisting of ground and first floor construction purchased under a registered sale deed dated 14.12.1966 and further agreed to handover the 1st floor of the building of the petition schedule property by the end of 30.11.2000, failing which the decree holder herein was given liberty to proceed against them in the execution proceedings to take possession of the same. Similarly, liberty was granted to take possession of the ground floor of the said property against the Samson Cyril, who had been in occupation of the same.

Thereafter, the decree holder filed O.S.No. 7778/1999 against said Samson Cyril for the relief of eviction from the ground floor of the suit schedule property and also instituted the Ex. Petition 119/2001 for taking possession of the 1st floor of the suit schedule property as the judgment debtors No.3 and 4 had failed to vacate the 1st floor of the suit schedule property. It is relevant to note that at that point of time, the judgment debtor Nos.3 and 4 filed application under Order XXI Rule 97 CPC contending that they are the LR's of Mr. J. Anthony Swamy and they are the absolute owners of the same. They have also contended that the Compromise Decree was not binding on them as they were not parties to the Compromise Decree. Hence, they were not liable to vacate the premises. For the said reason to resolve the dispute regarding the same, the decree holder had withdrawn the Execution Petition agreeing to resolve the same in O.S.No. 7778/1999. Accordingly, on 17.03.2004, this court had closed the said Execution Petition. Thereafter, the judgment debtor Nos.3 and 4 had filed O.S.No. 17502/2006 on 15.12.2006 before this

court, challenging the Compromise Decree and to declare the same as not binding on them on the premise that they were not parties to the said petition. According to the decree holder this court by considered judgment dated 30.11.2024 had dismissed the said suit of the judgment debtor no.3 and 4 and allowed the decree holder's case partly by directing defendants to vacate the ground floor premises by delivering the possession of the ground floor building of the suit schedule – B property within 3 months from the said date of judgment. It is also contended that even though the decree holder had filed E.P.119/2001 seeking possession of the 1st floor, he had decided to withdraw the same since the judgment debtor Nos.3 and 4 had laid a claim over the same by contending that they are the LR's. of Late Anthony Swamy and also filed O.S.No. 17502/.2006.

It is further contended that the Execution Petition now filed is well within the limitation period as the decree in O.S.No. 7778/ 1999 was passed on 30.11.2024 . It is further contended that in view of the filing of the application by the

judgment debtor Nos.3 and 4 under Order XXI Rule 97 CPC in E.P.119/2001 the decree holder had to get the main issue resolved in O.S.No. 7778/1999 and accordingly had withdrawn the Execution Petition on 17.03.2004. Hence, the Execution Petition is in time and not barred under Article 136 of the Limitation Act 1963.

3. The judgment debtor Nos.3 and 4 have filed objections to the Execution Petition contending that they had filed application under Order XXI Rule 97 and 98 of CPC as objectors/obstructors and when enquiry was held on the said application the said Execution Petition was dismissed for non – prosecution. As against the said Compromise Decree, the obstructors had filed a separate suit in O.S.No. 17502/2006 but on account of dismissal of the said suit on 30.11.2024 the judgment debtors have preferred RFA.No.69/2025. It is further contended that the Execution Petition was dismissed for non – prosecution and hence, the Execution filed on 20.12.2024 is barred by limitation under Article 136 of Indian

Limitation Act, 1963 and sought to dismiss the Execution Petition.

4. The learned counsel for the decree holder has relied on the certified copy of the Compromise Decree in O.S.No. 1354/1984, certified copy of Compromise Petition O.S.No. 1354/1984, certified copy of judgment and decree in O.S.No. 17502/2006 C/W. O.S.No. 7778/1999 and the order in Execution No.119/2001 dated 17.03.2004.

4.1 The on-line status of Execution Petition No.119/2001 discloses that the said Petition was dismissed on 16.08.2025. The learned counsel for the decree holder has filed a Memo stating that the entire records of E.P.119/2001 are not available in the Execution Petition except the computer down-loaded order sheet.

4.2 However, the learned counsel for the decree holder has filed office copy of the Memo dated 17.03.2004 in Ex.No.119/2001, wherein the decree holder has stated as under:

“Since the DHR has already filed O.S.No. 7778/1999 wherein these objectors are parties to the same and to get the dispute resolved in the said suit already pending it is necessary to dispose of the petition with liberty to that effect.”

5. On 30.07.2025, the learned counsel for the decree holder has filed applications filed under Order XXI Rule 97 by the objectors / judgment debtor Nos.3 and 4 in Ex.P.No.119/2001 on 22.01.2001 along with the affidavit and objections of the decree holder to the said application.

6. The learned counsel for the decree holder has relied upon two judgments in C.R.P. 4994/1989 reported in ILR 1991 KAR 254 in the case of Messrs. Paramount Industries Vs. C.M. Malliga and 1995-2-LW-197 Madras High Court in the case of Pechiyammal S. Vs. N. Gnanasundaram Nadar.

7. The learned counsel for the decree holder during the course of arguments has contended that the provisions of

of Section 17(2) of the Limitation Act are applicable in the present case as the decree holder was prevented from prosecuting the Execution Petition on account of the fraud played by the judgment debtors. Therefore, the decree holder is entitled to the benefit of of Section 17 (2) of the Limitation Act, wherein the court even after expiry of the limitation period can extend the period for execution of a decree or order. It is pertinent to note that after the dismissal of E.P.No.119/2001, the decree holder had also filed another E.P.2254/2004, wherein a direction was sought to the Sub-Registrar, Shivajinagar to enter the name of the decree holder in the place of Mr. J. Anthony Swamy. This court after considering the materials on record had allowed the Execution Petition by directing the Sub-Registrar, Shivajinagar to enter the name of the decree holder by substituting the name of Mr. J. Anthony Swamy.

8. Heard arguments and perused the records.

9. Now the points that would arise for my consideration are:-

1. Whether the Execution Petition is maintainable?

2. What order?

10. My answer to the above points are as under:-

Point No.1 : In the Negative

Point No. 2 : As per final order,
for the following:-

REASONS

11. POINT No.1 :- It is forthcoming from the records that the decree holder had instituted two Execution Petitions prior to the present Execution Petition for execution of the judgment and decree in O.S.No. 1354/1984 in E.P.119/2001 whereby the decree holder had sought to execute the judgment and decree in O.S.No. 1354/1984 which was decreed in terms of the Compromise Petition on 08.11.2000 in relation to the first floor of the Old flat No. 13 New Municipal No. 9/14 situated in Llyods Road, Cooke Town Municipal Corporation Division No. 86, Bangalore 560005. Under the Compromise Decree in O.S.NO. 1354/1984, the LR's. of the original plaintiff namely Mr. J.

Anthony Swamy had agreed to handover the vacant possession of the first floor of the suit schedule property to the defendant No.1 / decree holder after making necessary arrangements to accommodate the maid servants elsewhere filed by the end of November 2000. In the very same decree the defendant No.1 / decree holder was at liberty to evict the tenant in the ground floor of the suit schedule property and take the possession of the same in accordance with law . The Legal heirs of the original plaintiff had further agreed to hand over vacant possession of the 1st floor to the defendant / decree holder before 30.11.2000 by reserving liberty to decree holder to take possession of the 1st floor by Execution Proceedings. Therefore, it is clear from the aforesaid judgment and decree that only the first floor portion of the property bearing Old flat No. 13 New Municipal No. 9/14 situated in Llyods Road, Cooke Town Municipal Corporation Division No. 86, Bangalore 560005, was the subject matter of the compromise decree in O.S.No. 1354/1984 and consequently the decree holder was

entitled to execute the decree to the said effect by way of Execution Petition against the LR's. of the original plaintiff. There was nothing in the compromise decree to proceed against the present judgment debtors. In fact the judgment debtors had independently filed an application under Order XXI Rule 97 CPC for adjudication of their claims by asserting their right as the legal heirs of the original plaintiff in O.S.NO. 1354/1984 . The decree holder after having filed the objections to the said application filed by the objectors proceeded to file a Memo on 17.03.2004 stating that he has already filed O.S.No. 7778/1999, wherein the objectors are parties to the same and therefore to get the dispute resolved in the pending suit had sought for the disposal of the Execution Petition with liberty to that effect .

12. It is pertinent to note that O.S.No. 7778/1999 was filed by the present decree holder against Samson Cyril and the judgment debtor Nos.3 and 4 in respect of the ground floor premises described as B – schedule in the plaint . The subject matter of the suit in O.S.No.

7778/1999 was limited to seeking the relief of possession of the ground floor premises of the larger extent of the property owned by the decree holder herein. Merely because the judgment debtor Nos.3 and 4 were arrayed in O.S.No. 7778/1999, the decree holder could not have obtained any liberty to proceed against the objectors / defendants No.2 and 3 in O.S.No. 7778/1999 . The pendency of a separate suit with regard to a different subject matter between the objector and the decree holder was wholly irrelevant to the prosecution of the execution proceedings in E.P.NO. 119/2001 and therefore the decree holder could not have legally sought for disposal of the execution petition or sought for keeping the execution proceedings at abeyance.

13. It is a matter of record that a separate suit challenging the compromise decree in O.S.NO. 1354/1984 (which was the subject matter of E.P.NO. 119/2001) was filed by the objectors/ judgment debtors in O.S.NO. 17502/2006 only in the year 2006 and therefore there was absolutely no bar to proceed with the execution during the

pendency of O.S.No. 7778/1999. Except the application filed by the objectors in E.P.NO. 119/2001 under Order 21 Rule 97 CPC no other proceedings touching the subject matter of the property involved in E.P.NO. 119/2001 was pending as on the the date of memo dtd 17.3.2004. It is not even the case of the decree holder that the objectors had filed counter claim in O.S.NO. 7778/1999 and therefore adjudication of the claims of the objectors was essential by way of a the separate suit. It is well settled that Order 21 Rule 97-101 CPC forms a self contained mechanism and all questions relating to the right, title and interest in the property must be decided by the executing court. Therefore pendency of a prior suit or a parallel suit is immaterial for proceeding with the execution. Merely because the suit in O.S.No. 7778/1999 was pending the execution of the decree arising out of the suit in O.S.No. 1354/1984 could not have been put to a halt by seeking dismissal/disposal of the petition . A decree holder cannot avoid adjudication of the claim of the objectors merely because similar issues

arise elsewhere. Even otherwise there was no stay or injunction preventing the decree holder from proceeding with the execution of the decree passed in O.S.No. 1354/1984.

14. The materials on record clearly show that, much after lapse of 12 years from the date of decree and dismissal of E.P.NO. 119/2001 the decree holder has filed the present petition after the disposal of the suit in O.S.NO. 7778/1999 c/w 17502/2006 the present execution petition is filed on 20.12.2024. It is also forthcoming from the records that though the present judgment debtors no. 3 and 4 had filed their objector application under Order 21 Rule 97 CPC in E.P.NO. 119/2001 they are arrayed as judgment debtors in the present execution petition even though they were not parties to the suit in O.S.NO. 1354/1984 or in the execution petition no. 119/2001. Neither the dismissal of the suit in O.S.No. 17502/2006 filed the objectors nor the decretal of the suit in O.S.No. 7778/1999 would convert the status of the objectors as judgment debtors and therefore the execution petition against them is not maintainable.

15. In so far as the plea of limitation is concerned, the Learned Counsel for the decree holder has relied upon the provisions of Section 17(2) of the Limitation Act wherein the court even after expiry of the limitation period can extend the period for execution of a decree or order. However it is material to note that the provisions of Section 17(2) of the Limitation Act are applicable to a case when the decree holder was prevented from executing the decree within the period of limitation on account of the fraud or force by the judgment debtors. Here it is not the case of the decree holder that on account of the fraud played by the judgment debtor no.1 and 2 the real legal heirs of the Anthony Swamy were concealed and therefore inspite of the compromise decree in O.S.NO. 1354/1984 he could not have obtained the fruits of the decree through E.P.NO. 119/2001 unless the claim of the objectors were resolved through the proceedings in O.S.No. 7778/1999. The decree holder having filed the execution petition in E.P.No. 119/2001 cannot take the defense of being prevented from executing

the decree by virtue of the conduct of the judgment debtors. If there was suppression of ownership by the legal heirs of the original plaintiff in O.S.NO. 1354/1984, the decree holder could have contested the very application filed by the objectors in the application filed under Order 21 Rule 97 CPC itself in stead of evading it in the garb of prosecuting the alleged claim of the objectors in O.S.NO. 7778/1999. Therefore the provisions of Section 17(2) of the Limitation Act or the judgment relied upon by the decree holder in *Pechiyammal v. Gnanasundaram* 1995-2-LW 197 are not applicable to the facts of the case. The present execution petition having being filed after the lapse of 12 years from the date of decree in O.S.NO. 1354/1984 is clearly barred under Article 136 of the Limitation Act, 1963. There is nothing on record to indicate that the decree holder was bestowed with any liberty to file a fresh execution petition at the time of disposal / dismissal of the E.P.NO. 119/ 2001. The memo dtd 17.3.2004 filed by the decree holder in E.P.No. 119/2001 also does not seek for any liberty to revive

the petition or for fresh filing of the execution petition. Even if such liberty was sought and eventually granted, the grant of liberty would have been impermissible as the executing court could not extend the period of limitation much against the provisions of Article 136 of the Limitation Act, 1963. None of the provisions of the Limitation Act permit the decree holder to keep the execution proceedings pending/abeyance or seek dismissal with liberty to file execution petition till adjudication of all the claims against the decree holder either in previous proceedings or subsequent proceedings. If such liberty is granted then the provisions of the Limitation Act would be rendered otiose and redundant. Hence, the Execution Petition is not maintainable and the same is liable to be dismissed. **Accordingly point No.1 for consideration is answered in the Negative.**

16. POINT NO. 2 :- In view of my findings on Point No.1, I proceed to pass the following:-

ORDER

The Execution Petition filed by the decree holder is dismissed as not maintainable.

No order as to costs.

(Dictated to the Senior Sheristedar (Stenographer Grade-I), transcribed by her and the transcription corrected by me and pronounced in the open court, on this the **17th day of March 2026**).

(SUMANGALA CHAKALABBI)
C/C. XXVII Addl. City Civil and Sessions Judge,
Bengaluru.

